

Mutual Non-Disclosure Agreement

SAMPLE DOCUMENT — for demonstration only

Dated: _____

This Mutual Non-Disclosure Agreement (the “Agreement”) is entered into between Northwind Traders Inc. and Contoso Ltd (each a “Party” and together the “Parties”) to protect the confidential information each may share with the other while exploring a potential business relationship.

1. Purpose

The Parties wish to exchange certain confidential information for the sole purpose of evaluating a possible commercial relationship (the “Purpose”).

2. Confidential Information

“Confidential Information” means any non-public information disclosed by one Party to the other, whether orally, in writing or in any other form, that is marked confidential or that a reasonable person would understand to be confidential.

3. Obligations

Each Party will keep the other’s Confidential Information confidential, use it only for the Purpose, and disclose it only to its personnel and advisers who need to know it and who are bound by equivalent obligations.

4. Exclusions

Confidential Information does not include information that is or becomes public other than through breach, was already lawfully known to the receiving Party, is independently developed, or is lawfully received from a third party without restriction.

5. Term

This Agreement takes effect on the date above and continues for two (2) years, after which the confidentiality obligations survive for a further three (3) years.

6. Governing Law

This Agreement is governed by the laws of _____, and the Parties submit to the exclusive jurisdiction of its courts.

Signatures

Executed by the duly authorised representatives of the Parties.

For and on behalf of NORTHWIND TRADERS INC.

For and on behalf of CONTOSO LTD

Signature:

Signature:

Name:

Name:

Title:

Title:

Date:

Date: